ATTORNEY-IN-FACT OPERATIONAL EXECUTION CHECKLIST & CROSS-BORDER CLAIM PROCEDURAL PROTOCOL

선임 대리인 겸 수임인 실무 집행 편람: 위임장 영사확인·내용증명 발송·10 일 가지급금 추적 및 단계별 에스컬레이션 총괄 매뉴얼

Document Control Number: EXEC-CHK-2026-0826-M3

Document Classification: Litigation-Grade Operational Master Checklist & Administrative Execution Protocol

Target Matter: Cross-Border Insurance Claim Recovery & Legal Enforcement for the Sole Statutory Heirs of Late MAHADI MONOAR HOSSAIN

File Name & Path: `d:/promotion/legal_claim_package/08_attorney_in_fact_execution_checklist.md`

Target Milestone: Milestone 3 Deliverable (M3)

Core Case & Party Identifiers

- **Deceased Insured:**
  - Full Legal Name: MAHADI MONOAR HOSSAIN (마하디 모노아르 호세인 / Passport: MONOAR HOSSAIN MAHADI)
  - Alien Registration Number (ARC): `010530-7660021` (춘천출입국·외국인사무소 속초출장소)
  - Passport Number: `A03097931` (Personal Identification Number: `7362790417`)
  - Date of Birth / Age: May 30, 2001 (만 24 세, 미혼, Intestate)
  - Academic Status: Enrolled D-2 Student, Seojeong University (서정대학교 스마트자동차과 1 학년, 학번: `202581042`)
- **Fatal Accident:**
  - Date & Time: March 14, 2026 at 05:58 AM KST
  - Incident Location: Bukbun-ri 4-1, Hyeonnam-myeon, Yangyang-gun, Gangwon State (National Road 7)
  - Police Investigation: Gangwon Sokcho Police Station Traffic Accident Investigation Unit (Case No. `2026-00020`)
  - Nature of Event: Single-vehicle road departure and guardrail collision (단독 도로이탈 가드레일 충돌 외인사)
  - Forensic Findings: Traumatic Brain Injury & Skull Fractures (GangNeung Asan Hospital Post-Mortem Certificate No. `2026031447738965`, Dr. Huidong Kang)
- **Target Insurance Policies & Demands:**

1. **Primary Policy:** DB Insurance Co., Ltd. Promy Car Individual Auto Policy (`28 모 1390`, Policy No. `2-2026-0531750-000`, Renewed January 21, 2026; Service Channel: DB Insurance Direct / `1588-0100`).

   - Demand: KRW 100,000,000 Accidental Death Benefit + KRW 50,000,000 Statutory 50% Provisional Payment (*가지급보험금*).

2. **Secondary Policy:** Seojeong University Foreign Student Master Group Accident Policy (서정대학교 외국인 유학생 단체상해보험).

- Demand: KRW 10,000,000 ~ 50,000,000 Accidental Death Benefit + Actual Repatriation & Funeral Expenses (KRW 5,000,000 ~ 20,000,000).

- **Sole Statutory Heirs (100% Entitlement under PIL Act Art. 49 & Sunni Hanafi Muslim Law):**

- **Father (부):** BELAL HOSSAIN (벨랄 후세인, NID: 19741913345000128 / DOB: 1974.04.10.) — **2/3 Statutory Share (66.667%)**

- **Mother (모):** MONOARA BEGUM (모노아라 베검, NID: 19801913345000129 / DOB: 1980.02.15.) — **1/3 Statutory Share (33.333%)**

- Permanent Domicile: Munshi Bari, Keshobpur, Monoharganj - 3571, Cumilla, Bangladesh

- **Designated Attorney-in-Fact (수임인 겸 대리인):**

- Md Monirul Islam, Chairman of the Korea Bangladesh Human Rights Committee (주한 방글라데시 인권위원회 위원장)

- Address: Legal Support Headquarters, Seocho-daero, Seocho-gu, Seoul, Republic of Korea

- Mandate Authority: Bilingual Special Power of Attorney (*소송대리 및 보험금 수령 특별위임장*, Civil Act Art. 118 & Civil Procedure Act Art. 89)

- **Direct Cross-Border SWIFT Wire Remittance Coordinates:**

- **Father (Belal Hossain, 2/3 Share):** Islami Bank Bangladesh PLC, Debidwar Branch, Account No. 20501230100456789, SWIFT: MTBLBDDH

- **Mother (Monoara Begum, 1/3 Share):** Sonali Bank PLC, Debidwar Branch, Account No. 20501230100789012, SWIFT: BSONBDDHXXX

- **Governing Legal Framework:**

- Korean Commercial Code (상법) Arts. 732-2, 739, 663, 54

- Standard Automobile Insurance Terms (자동차보험 표준약관) Art. 34 (보험금 지급시기 및 가지급금)

- Korean Civil Act (민법) Arts. 111 (도달주의), 118 (대리권의 범위), 379 (법정이율)

- Korean Civil Procedure Act (민사소송법) Arts. 87, 89, 356, 358

- Korean Private International Law Act (국제사법) Art. 49

- Special Act on Promotion of Litigation, etc. (소송촉진 등에 관한 특례법) Art. 3(1)

- Supreme Court Precedents: 98Da48963 (En Banc), 97Da27039, 98Da26910, 2003Da29463

- Legal Aid Act (법률구조법) Arts. 1, 7, 8, 22

- **Execution Date:** August 30, 2026 (Litigation-Grade Standard)

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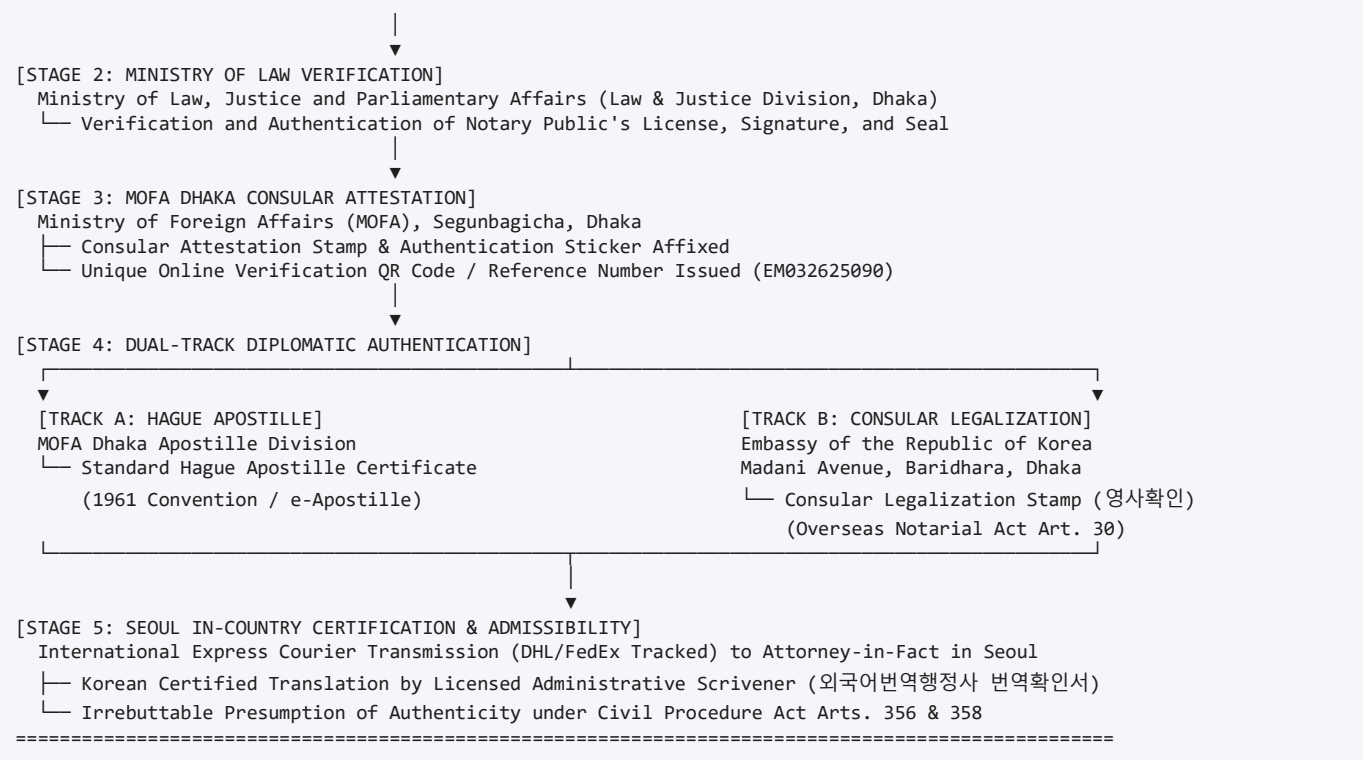
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SECTION 1: BANGLADESH SPECIAL POWER OF ATTORNEY & HEIRSHIP LEGALIZATION PROTOCOL

방글라데시 특별위임장 및 상속인 서증 인증 실무 로드맵

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                DHAKA-TO-SEOUL 5-STAGE CROSS-BORDER LEGALIZATION PIPELINE
================================================================================================
[STAGE 1: BANGLADESH LOCAL EXECUTION]
  Belal Hossain (Father) & Monoara Begum (Mother)
  ├── Personal Appearance before Licensed Notary Public (Dhaka/Cumilla)
  ├── Verification of National Identity Cards (NID) & Passports
  └── Physical Signatures, Fingerprints & Official Notarial Certificate Affixed
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1.1 Chronological Administrative Roadmap in Bangladesh (Dhaka / Cumilla)

The designated Attorney-in-Fact (Md Monirul Islam) coordinates the sequential execution of the Bilingual Special Power of Attorney (*한·영 병렬 특별위임장*, File 04) and core heirship certificates in Bangladesh following these strict administrative steps:

1. **Step 1: Execution & Notarization before Licensed Notary Public (Dhaka/Cumilla)**

   - **Action:** Surviving parents BELAL HOSSAIN (Father, NID `19741913345000128`) and MONOARA BEGUM (Mother, NID `19801913345000129`) appear in person before a licensed Notary Public appointed under the Notaries Ordinance, 1961.

   - **Document Dossier Executed:**

     - Bilingual Special Power of Attorney (*한·영 병렬 특별위임장* - File 04 / Exhibit F-1);

     - Legal Heirship Certificate (*Warisan Sanad* / *상속인증명서* - Exhibit E-1);

     - Family Relationship Certificate (*가족관계증명서* / *Birth Registry* - Exhibit E-2);

     - Certified True Copies of Parents' NID Cards and Passports (Exhibit E-3);

     - Bank Account Direct Remittance Confirmation Letters (Exhibit F-3).

   - **Verification:** Notary verifies genuine identity via biometric NID database, examines free will, witnesses physical signatures and right thumbprints, and affixes notarial seal, serial number, and stamp.

2. **Step 2: Verification by the Ministry of Law, Justice & Parliamentary Affairs**

- **Action:** The notarized dossier is submitted to the **Law and Justice Division, Ministry of Law, Justice and Parliamentary Affairs** (Bangladesh Secretariat, Abdul Gani Road, Dhaka-1000).

- **Verification:** Ministry officials cross-check the Notary Public's active commission, license registry, signature specimen, and embossed seal. An official authentication signature and register index number are applied.

3. **Step 3: Consular Attestation by the Ministry of Foreign Affairs (MOFA), Dhaka**

- **Action:** Submission to the **Ministry of Foreign Affairs (MOFA)**, Consular & Official Documents Section (1 Segunbagicha, Dhaka-1000; Tel: +880-2-9562950; Online Portal: `attestation.mofa.gov.bd`).

- **Verification:** MOFA examines the chain of domestic notarization and Law Ministry authentication. MOFA affixes the official consular authentication sticker, security hologram, and unique digital tracking QR code (e.g., Application Ref No. `EM032625090`).

4. **Step 4: Consular Legalization / Hague Apostille Certification**

- **Track B (Consular Legalization - Primary Litigation Route):**

  - Submit MOFA-attested originals to the **Consular Section of the Embassy of the Republic of Korea in Dhaka** (Madani Avenue, Baridhara, Dhaka-1212; Tel: +880-2-5881-2088).

  - The Korean Consular Officer reviews the instruments and applies the official **Consular Legalization Seal (대한민국 대사관 영사확인 직인)** pursuant to Article 30 of the Republic of Korea Notarial Act for Overseas Missions.

- **Track A (Hague Apostille - Expedited Administrative Route):**

  - Obtain the standard 1961 Hague Apostille Certificate directly from MOFA Dhaka Apostille Division.

5. **Step 5: Secure International Courier Transmission to Seoul**

- **Action:** Authenticated originals are sealed in waterproof security packaging and dispatched via DHL Express / FedEx International Priority with end-to-end tracking to the Attorney-in-Fact's legal office in Seoul.

6. **Step 6: Domestic Certified Translation & Scrivener Certification (Seoul)**

- **Action:** Upon receipt in Seoul, all Bengali and English instruments are translated into Korean by a licensed **Korean Certified Foreign Language Translation Administrative Scrivener (공인외국어번역행정사)**.

- **Output:** Issuance of the statutory **Certificate of Translation (번역확인서)** pursuant to Article 20 of the Administrative Scrivener Act, establishing prima facie judicial admissibility under Korean Civil Procedure Act Articles 356 and 358.

1.2 Track A (Hague Apostille) vs Track B (Consular Legalization) Comparative Matrix

Feature / Criteria	Track A: Hague Apostille (아포스티유 경로)	Track B: Korean Consular Legalization (영사확인 경로 - Gold Standard)
Governing Treaty / Law	1961 Hague Apostille Convention (BD Accession July 2023)	ROK Overseas Missions Notarial Act Art. 30; CPA Art. 356
Authentication Authority	Ministry of Foreign Affairs (MOFA), Dhaka	Embassy of the Republic of Korea, Dhaka,

		Bangladesh
Processing Turnaround	1 – 3 business days in Dhaka	3 – 7 business days in Dhaka
Acceptance: DB Insurance & Insurers	Accepted for preliminary claim lodging; may trigger internal legal compliance inquiries	**100% Unconditional Payout Clearance**; zero compliance friction
Acceptance: FSS Dispute Mediation	Fully admissible under administrative standards	**100% Admissible as Verified Public Record**
Acceptance: Korean District Courts	Admissible; requires treaty notification verification	**Irrebuttable Presumption of Authenticity (공문서 진정성립)**
Acceptance: Foreign Exchange Banks	Admissible for cross-border wire verification	**100% Immediate Outward Wire Approval (대외지급 승인)**
Strategic Recommendation	**Use as backup or expedited secondary filing**	**MANDATORY PRIMARY TRACK for Full Litigation & Wire Recovery**

1.3 Transmission to Korea & Secure Chain of Custody

The Attorney-in-Fact enforces strict chain-of-custody protocols upon document dispatch from Dhaka:

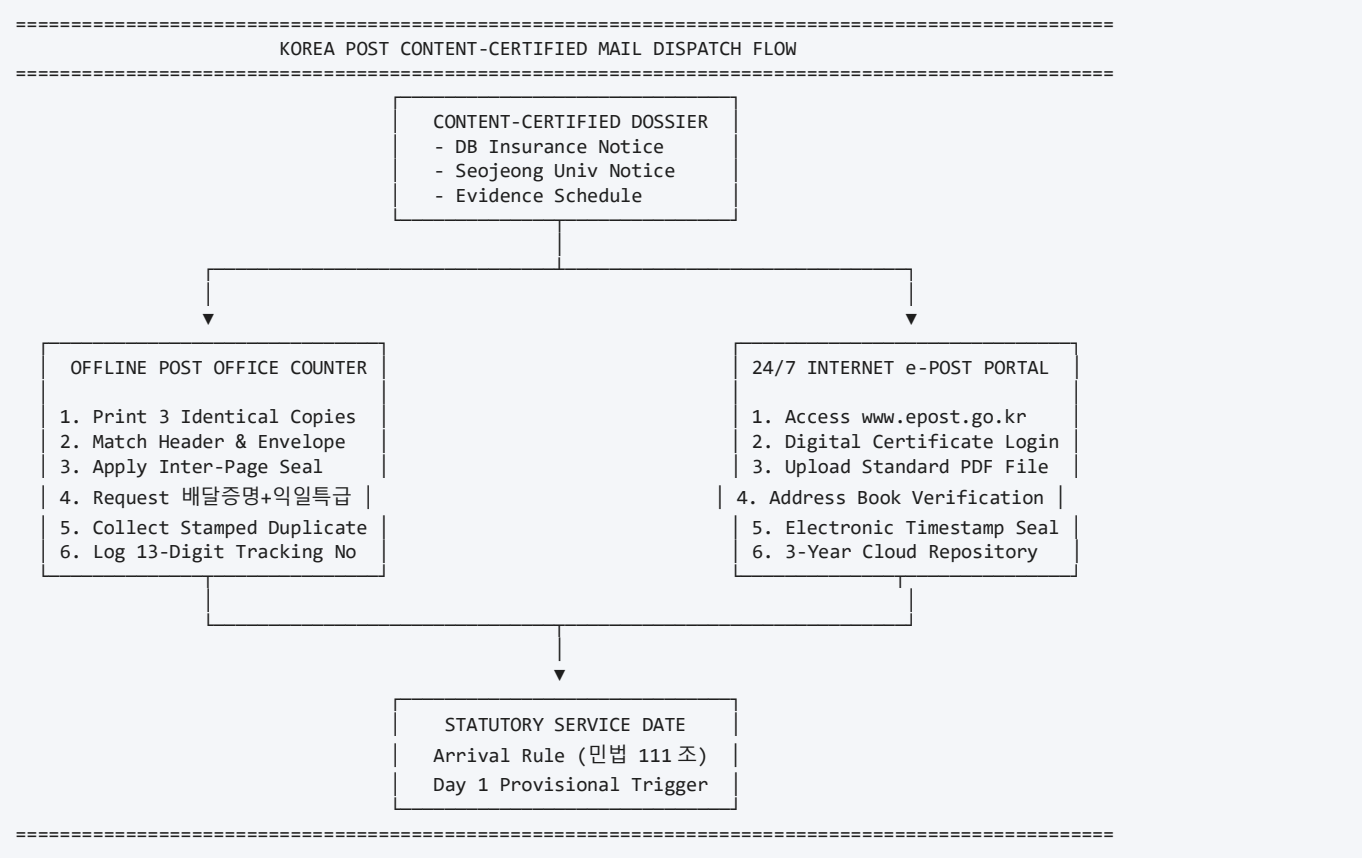
7. **Air Waybill Logging:** Log express courier tracking number (e.g., DHL Express AWB `1234567890`) into the master case ledger.
8. **Physical Inspection & Vault Storage:** Upon arrival in Seoul, inspect original seals for physical integrity, photograph each authenticated page, and deposit original authenticated instruments into a fireproof legal vault.
9. **Digital Archival:** Create 600 DPI full-color PDF scans of all documents, seals, holograms, and stamps, categorizing them under Exhibit Groups E and F.

1.4 Domestic Certified Translation & Scrivener Certification (CPA Arts. 356 & 358)

10. **Civil Procedure Act Art. 356(3) (Presumption of Authenticity of Foreign Official Documents):** Authenticated foreign official instruments legalized by the Korean Embassy in Dhaka carry the legal presumption of genuine execution.
11. **Civil Procedure Act Art. 358 (Presumption of Authenticity of Private Documents):** Private instruments (Special POA) notarized and attested are legally deemed authentic when signed/thumbprinted by the principals.
12. **Administrative Scrivener Act Art. 20 (외국어번역행정사의 번역확인서):** Certified translation certificates must include the scrivener's license number, registered seal, verbatim source text, and affirmative statement of accurate translation.

SECTION 2: KOREA POST CONTENT-CERTIFIED MAIL (내용증명) DISPATCH PROTOCOL

대한민국 우체국 내용증명 우편 창구 집행 및 전자내용증명 실무 편람



2.1 Offline Postal Counter 3-Copy Dispatch Step-by-Step Protocol

When executing physical Content-Certified Mail at a Korea Post office window (우체국 창구), the Attorney-in-Fact must execute the following operational steps:

OFFLINE POSTAL COUNTER STEP-BY-STEP CHECKLIST		
Step	Action Item	Operational Requirements & Verification Points
S-1	**Triplicate Document Preparation** (3 부 동일 원본 출력)	Print exactly 3 identical hard copies: 1. Recipient Copy (수신인 송달용 정본) 2. Post Office Archive Copy (우체국 보관용 등본) 3. Sender Retained Copy (발신인 보관용 등본)
S-2	**Envelope & Header Verbatim Matching** (문서 표제부와 봉투 기재사항 100% 일치)	Ensure sender/recipient names, postal codes, and road addresses match 100% verbatim. *Any typo causes immediate postal rejection.*
S-3	**Inter-Page Perforation Seal (간인/契印)** (다면 문서 전 페이지 연결 간인 날인)	Across the folding seam of every page, affix the Attorney-in-Fact's registered stamp or

		signature to guarantee document integrity.
S-4	**Special Supplementary Service Request** (배달증명 및 익일특급 부가서비스 지정)	Explicitly request two mandatory services: 1. **Delivery Confirmation (배달증명)** 2. **Next-Day Express (익일특급)**
S-5	**Clerk Verification & Postal Stamp** (우체국 통신일부인 날인 및 정본 봉입)	Postal clerk inspects all 3 copies, verifies text parity, stamps official date seal across margins and envelope, and seals Recipient Copy.
S-6	**Receipt & Certified Duplicate Custody** (우편영수증 수령 및 13 자리 등기번호 기록)	Receive stamped Sender Copy and official postal receipt with 13-digit tracking number (등기번호

2.2 Verbatim Match & Inter-Page Perforation Stamp (간인/契印) Rules

13. **Verbatim Parity Rule (우편법 시행규칙 제 46 조 내지 제 59 조):**

- The Sender Name (*발신인*), Recipient Name (*수신인*), Corporate Registration (*법인명 및 대표자*), and Postal Addresses on the document's page 1 header must match the mailing envelope character-for-character.

- For DB Insurance HQ:

  - Header: 수신인: DB 손해보험주식회사 대표이사 정종표

  - Address: 서울특별시 강남구 테헤란로 432 (대치동, DB 금융센터) [우편번호: 06194]

  - Envelope: Verbatim matching (우편번호 06194) 서울특별시 강남구 테헤란로 432, DB 금융센터 DB 손해보험주식회사 대표이사 정종표 귀하.

14. **Inter-Page Seal (간인 / 契印) Execution:**

- Where a notice spans 2 or more pages, fold the right margin over the subsequent page and affix the legal representative's personal seal (*인감도장*) or authorized signet across the intersection.

- Alternatively, use fan-fold stamping across all page edges.

2.3 Special Supplementary Postal Services (배달증명 & 익일특급)

15. **Delivery Confirmation Service (*배달증명 - Postal Service Rules Art. 59*):**

- Korea Post formally records the exact delivery date, hour, and the recipient's signature/stamp upon delivery, mailing an official Delivery Certificate Postcard (*배달증명통지서*) back to the sender.

- **Critical Legal Function:** Provides indisputable, court-certified proof of the exact service arrival date (*도달일자*), triggering statutory default interest and the 10-day provisional payment deadline under Civil Act Article 111 (도달주의).

16. **Next-Day Express (*익일특급*):**

- Guarantees delivery to the recipient within 24 hours of dispatch, accelerating the start of the 10-day countdown.

2.4 24/7 Internet e-Post (인터넷우체국 전자내용증명) Online Submission Protocol

As an alternative to physical counter visits, the Attorney-in-Fact can file via Korea Post's 24/7 online system:

INTERNET e-POST (전자내용증명) 6-STEP SUBMISSION GUIDE

Step	Operational Stage	Action & Technical Requirements
E-1	**Portal Access & Authentication** (인터넷우체국 접속 및 본인인증)	Access `www.epost.go.kr` -> 우편 -> 증명서비스 -> 전자내용증명. Authenticate via Joint Cert (공동인증서), Financial Cert, or Simple Auth.
E-2	**Recipient Address Validation** (도로명주소 표준 검증 및 수신인 등록)	Input recipient address and run database lookup against Korea Post Road Name Address Registry.
E-3	**Document Upload & Conversion** (정본 문서 업로드 및 서식 변환)	Upload standardized document (PDF/HWP format, margins >= 20mm). Review rendered preview.
E-4	**Service Selection & Payment** (배달증명 부가서비스 선택 및 결제)	Check [배달증명] + [익일특급] options. Settle postal and certification fees online.
E-5	**Digital Time-Stamp & Dispatch** (전자타임스탬프 부여 및 자동 발송)	System applies TSA digital time-stamp and hash Korea Post prints, envelopes, and dispatches.
E-6	**Cloud Repository & Tracking Query** (3 년간 인터넷 열람·재발급 및 배송조회)	Stored in e-Post 3-year cloud archive. View real-time delivery status via 13-digit number.

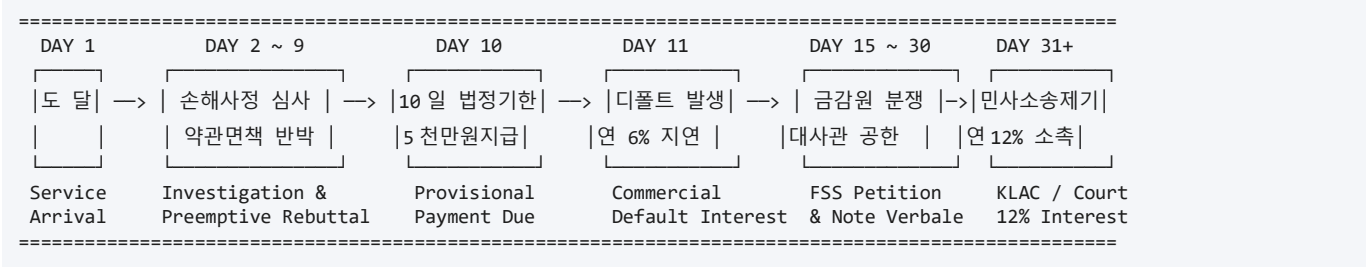
2.5 Postal Tracking & Proof of Service Archiving Workflow

17. **Daily Delivery Tracking:** Input the 13-digit tracking number into `www.epost.go.kr` or mobile Korea Post app daily at 09:00 KST and 18:00 KST until delivery is logged.
18. **Archiving Delivery Receipt:** Upon delivery confirmation, download and print the **Delivery Certificate (배달증명서 / 배달완료 내역서)** displaying recipient name, receipt stamp, and delivery timestamp.
19. **Establishing Day 1 (도달일):** Record the exact delivery date as **Day 1** in the case tracking calendar.

SECTION 3: STATUTORY 10-DAY PROVISIONAL PAYMENT REQUEST (가지급금 청구) TRACKER

상법 제 732 조의 2 및 표준약관 제 34 조에 따른 10 일 가지급금 일일 추적 및 지연배상금 산정 엔진

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10-DAY PROVISIONAL PAYMENT & CONTINGENCY ESCALATION TIMELINE



3.1 Strict Day-by-Day Procedural Calendar (Day 1 to Day 31+)

STATUTORY 10-DAY PROVISIONAL PAYMENT CALENDAR & ACTION PLAN

Day	Procedural Milestone & Legal Status	Attorney-in-Fact Mandatory Action Protocol
D+1	**Service Arrival (도달주의 확정)** Notice legally delivered to DB Insurance (Civil Act Art. 111). Countdown begins.	1. Download official Korea Post Delivery Proof. 2. Log exact delivery date as "Day 1". 3. Transmit courtesy PDF to Claims Dept email.
D+2	**Claims Adjuster Assignment Monitoring** Insurer assigns claims adjuster / team.	1. Call DB Insurance Claims Center (1588-0100). 2. Obtain Adjuster Name, Direct Tel, Fax, Email 3. Confirm receipt of provisional claim.
D+3	**Preemptive Legal Doctrine Briefing** Counter potential unlicensed defense.	1. Contact adjuster via official phone/email. 2. Cite Supreme Court 98Da48963 En Banc. 3. Demand adherence to 10-day provisional rule.
D+4	**Document Sufficiency Review** Check for document deficiency pretext.	1. Re-verify whether adjuster requests any supplementary documentation. 2. Provide instant response referencing File 05
D+5	**Midway Written Status Inquiry** Formal inquiry on provisional approval.	1. Send formal status email to Claims Adjuster. 2. Remind insurer of KRW 50,000,000 obligation 3. Re-confirm foreign exchange wire coordinates
D+6	**Executive / Management Escalation** Alert regional claims management.	1. Contact Gangwon Claims Team Leader. 2. Emphasize pending FSS dispute and Note Verbale if statutory deadline is breached.
D+7	**Foreign Exchange Wire Pre-Clearance** Ensure international remittance readiness	1. Coordinate with Korean FX Bank (Hana/Shinhan) 2. Provide verified SWIFT coordinates (IBBL/ Sonali) and non-taxation legal memo.
D+8	**Final 48-Hour Pre-Default Notice** Official notice of imminent default.	1. Send urgent warning fax to Claims Dept & HQ 2. State that default interest (6% p.a.) and FSS complaint trigger on Day 11.
D+9	**Final 24-Hour Pay-or-Dispute Notice** Final operational window for voluntary provisional payment disbursement.	1. Final verbal and written demand to Adjuster 2. Finalize FSS Dispute Mediation Petition (File 02) and BD Embassy Petition (File 07).
D+10	**STATUTORY PROVISIONAL PAYMENT DEADLINE** Final statutory day under Auto Terms 34 and Commercial Code Art. 732-2.	1. Verify bank receipt of KRW 50,000,000. 2. If paid: Issue formal receipt & demand final KRW 50M balance settlement within 30 days. 3. If unpaid: Formally log statutory default.
D+11	**COMMERCIAL DEFAULT TRIGGER (디폴트)** Statutory default status commences. Delay damages start accruing daily.	1. Commercial default interest (6.0% p.a.) accrues automatically (Commercial Code 54). 2. Send Formal Default Notice to DB Insurance.
D+15	**ESCALATION LEVEL 1: FSS & EMBASSY** Deploy regulatory & diplomatic channels.	1. File FSS Dispute Mediation Petition (02). 2. Submit Diplomatic Petition to BD Embassy(07) 3. Request Embassy Note Verbale to MOFA Korea.
D+30	**FINAL STATUTORY SETTLEMENT DEADLINE** Maximum claims adjustment investigation	1. Full KRW 100M final payment statutory limit. 2. Evaluate FSS conciliation progress.

	period under insurance regulation.	3. Prepare KLAC Civil Litigation Dossier.
D+31+	**ESCALATION LEVEL 2: CIVIL LAWSUIT** Judicial litigation filed in ROK court. Litigation interest: 12.0% per annum.	1. File formal civil action at Seoul Central District Court via KLAC / Pro Bono Counsel. 2. Demand 12% p.a. interest under Special Act.

3.2 Preemptive Invalidation of Insurer Obstruction & Exemption Defenses

```
================================================================================================
            INSURER EXEMPTION DEFENSE VS PREEMPTIVE LEGAL REBUTTAL MATRIX
================================================================================================
[INSURER UNLAWFUL DEFENSE]
  "The deceased drove without a valid Korean driver's license; pursuant to policy terms,
   unlicensed driving excludes all first-party accidental death benefits."
                                    |
                                    ▼
[PREEMPTIVE LEGAL REBUTTAL & STATUTORY CITATIONS]
  1. Mandatory Statute Hierarchy (상법 제 732 조의 2 & 제 663 조):
     - Commercial Code Art. 732-2 explicitly mandates that insurers CANNOT exempt liability
       for accidental death caused by gross negligence.
     - Commercial Code Art. 663 strictly prohibits contractual terms disadvantageous to insureds.
  2. Supreme Court En Banc Landmark Precedent (대법원 98 다 48963 전원합의체 판결):
     - "Unlicensed driving exemption clauses in automobile insurance are NULL AND VOID
        with respect to first-party self-physical accident / auto injury coverage."
  3. Nature of Accidental Death Benefit (대법원 2003 다 29463 판결):
     - Accidental death benefits are the "inherent property of the statutory heirs" (고유재산),
       not estate assets subject to set-off or administrative denial.
  4. Bad-Faith Warning:
     - Raising an exemption clause already declared null and void by the Supreme Court En Banc
       constitutes bad-faith claims handling, triggering administrative sanctions under the
       Financial Consumer Protection Act and punitive regulatory investigation.
================================================================================================
```

3.3 Dual-Stage Default Interest Engine (Commercial 6.0% -> Litigation 12.0% p.a.)

20. **Stage 1: Commercial Default Interest (상사법정이율 연 6.0%)**

- **Legal Anchor:** Korean Commercial Code Article 54 (*상법 제 54 조 상사법정이율*).

- **Accrual Window:** From Day 11 following delivery of the Content-Certified provisional demand until the date of service of the formal civil complaint.

- **Daily Calculation:** $₩text{Daily Interest} = ₩text{Principal Amount} ₩times ₩frac{0.06}{365}$.

21. **Stage 2: Special Act Litigation Interest (소송촉진특례법상 연 12.0%)**

- **Legal Anchor:** Special Act on Promotion of Litigation, etc. Article 3(1) (*소송촉진 등에 관한 특례법 제 3 조 제 1 항*).

- **Accrual Window:** From the day following service of the formal civil complaint upon DB Insurance until full satisfaction and payment.

- **Daily Calculation:** $₩text{Daily Interest} = ₩text{Principal Amount} ₩times ₩frac{0.12}{365}$.

3.4 Daily Interest Accrual Table & Mathematical Formulas

```
================================================================================================================================
                                    STATUTORY DEFAULT INTEREST ACCRUAL SCHEDULE
================================================================================================================================
TARGET CLAIM PRINCIPAL              STATUTORY INTEREST RATE    ANNUAL INTEREST AMOUNT      DAILY ACCRUAL RATE (365 DAYS)
================================================================================================================================
Provisional Benefit (KRW 50,000,000)  Commercial: 6.0% p.a.     KRW 3,000,000 / year        **KRW 8,219.18 / day**
Full Death Benefit (KRW 100,000,000)  Commercial: 6.0% p.a.     KRW 6,000,000 / year        **KRW 16,438.36 / day**
--------------------------------------------------------------------------------------------------------------------------------
Provisional Benefit (KRW 50,000,000)  Litigation: 12.0% p.a.    KRW 6,000,000 / year        **KRW 16,438.36 / day**
Full Death Benefit (KRW 100,000,000)  Litigation: 12.0% p.a.    KRW 12,000,000 / year       **KRW 32,876.71 / day**
--------------------------------------------------------------------------------------------------------------------------------
Combined Claims (KRW 150,000,000)*    Litigation: 12.0% p.a.    KRW 18,000,000 / year       **KRW 49,315.07 / day**
================================================================================================================================
*Combined claims include DB Insurance KRW 100M + Seojeong University Group Policy & Repatriation KRW 50M.
```

Cumulative Delay Damages Mathematical Formula:

$$₩text{Total Recovery Amount} = ₩text{Principal} + ₩left(₩text{Principal} ₩times 0.06 ₩times ₩frac{D_{₩text{commercial}}}{365}₩right) + ₩left(₩text{Principal} ₩times 0.12 ₩times ₩frac{D_{₩text{litigation}}}{365}₩right)$$

SECTION 4: COMPREHENSIVE MASTER ACTION CHECKLIST FOR ATTORNEY-IN-FACT

선임 대리인 겸 수임인 단계별 종합 집행 점검표

```
================================================================================================================================
                                      MASTER ACTION CHECKLIST MATRIX (PHASES 1 TO 5)
================================================================================================================================
#   ACTION ITEM & PROCEDURAL STEP      DOSSIER FILE REF     EXHIBIT CODE     PRIMARY CONTACT / AGENCY    STATUS / DEADLINE
================================================================================================================================
```

4.1 Phase 1: Pre-Filing Heirship Authentication & Evidence Compilation (Dhaka to Seoul)

- [ ] **Item 1.1: Execute Bilingual Special Power of Attorney in Dhaka**

  - *Description:* Belal Hossain & Monoara Begum execute File 04 before Dhaka Notary Public.

  - *Cross-Reference:* `04_bilingual_special_power_of_attorney.md` Exhibit F-1 / F-2.

  - *Responsible Party:* Dhaka Notary Public & Bangladesh Secretariat (Law Ministry).

  - *Verification:* Parent signatures, NID match, notarial seal, Law Ministry authentication stamp.

- [ ] **Item 1.2: Obtain & Legalize Core Bangladeshi Heirship Certificates**

- *Description:* Procure Legal Heir Certificate (*Warisan Sanad*) and Family Relationship Certificate.

- *Cross-Reference:* `04_cross_border_heirship_and_legalization_guide.md` Exhibits E-1, E-2, E-3.

- *Responsible Party:* Union Parishad Chairman / 1st Class Magistrate & MOFA Dhaka.

- *Verification:* Sunni Hanafi 2/3 (Father) and 1/3 (Mother) share apportionment verified.

- [ ] **Item 1.3: Complete Korean Embassy Legalization in Dhaka (Track B)**

- *Description:* Submit MOFA-attested dossier to Embassy of Korea in Dhaka for Consular Seal.

- *Cross-Reference:* `04_cross_border_heirship_and_legalization_guide.md` Exhibit F-2.

- *Responsible Party:* Consular Section, Korean Embassy Dhaka (+880-2-5881-2088).

- *Verification:* Consular Legalization Stamp affixed under Overseas Missions Notarial Act Art. 30.

- [ ] **Item 1.4: Courier Transmission & Seoul Scrivener Translation Certification**

- *Description:* Express courier originals to Seoul; execute Korean Certified Translations.

- *Cross-Reference:* `05_evidence_inventory_and_exhibits_catalog.md` Exhibit E-4.

- *Responsible Party:* Licensed Foreign Language Translation Administrative Scrivener.

- *Verification:* Statutory Certificate of Translation (*번역확인서*) attached to all exhibits.

- [ ] **Item 1.5: Compile Domestic Accident, Medical & Insurance Evidence**

- *Description:* Consolidate Police Traffic Accident Report, Post-Mortem Certificate, and Policy data.

- *Cross-Reference:* `05_evidence_inventory_and_exhibits_catalog.md` Exhibits A-1~A-3, B-1~B-7, C-1~C-2, D-1~D-3.

- *Responsible Party:* Sokcho Police Station, GangNeung Asan Hospital, Seojeong University.

- *Verification:* Confirm external accidental death, policy validity (`28 모 1390`), and student standing.

4.2 Phase 2: Direct-Filing Postal & Electronic Dispatch Execution

- [ ] **Item 2.1: Dispatch Content-Certified Mail to DB Insurance HQ**

- *Description:* Dispatch canonical 3-copy Korean Notice with Delivery Confirmation (*배달증명*).

- *Cross-Reference:* `06_direct_filing_dispatch_package.md` `01_db_insurance_claim_notice_and_legal_brief.md` (Section 1)

- *Target Recipient:* DB Insurance CEO Jeong Jong-pyo & Claims Dept (06194 서울 강남구 테헤란로 432 DB 금융센터).

- *Demand:* KRW 100M Death Benefit + KRW 50M 10-Day Provisional Payment.

- [ ] **Item 2.2: Dispatch Content-Certified Mail to DB Insurance Direct / Claims Operations**

- *Description:* Transmit copy of claim notice to DB Insurance Customer Claims Operations (`1588-0100`).

- *Cross-Reference:* `06_direct_filing_dispatch_package.md` (Section 3).

- *Target Recipient:* DB Insurance Direct / Customer Claims Center (`1588-0100`).

- *Purpose:* Establish formal institutional notice under Commercial Code Article 646-2.

- [ ] **Item 2.3: Dispatch Content-Certified Mail to Seojeong University OIA**

- *Description:* Dispatch claim notice for D-2 Foreign Student Group Accident & Repatriation.

- *Cross-Reference:* `06_direct_filing_dispatch_package.md` `03_seojeong_university_group_insurance_claim.md`. (Section 2)

- *Target Recipient:* Seojeong University President Yang Young-hee & Dean of International Affairs.

- *Demand:* KRW 10M~50M Accidental Death + KRW 5M~20M Repatriation Expenses.

- [ ] **Item 2.4: Execute High-Priority Bilingual Electronic Filing via Email**

- *Description:* Transmit bilingual email filings with full encrypted evidence attachments.

- *Cross-Reference:* `06_direct_filing_dispatch_package.md` (Section 4, Templates A & B).

- *Recipients:* `claim_auto@idbins.com`, `claim@idbins.com`, `global@seojeong.ac.kr`.

- *Verification:* Confirm server delivery receipt and email tracking timestamp.

4.3 Phase 3: 10-Day Provisional Payment Monitoring & Defense Rebuttal

- [ ] **Item 3.1: Log Service Arrival Date (Day 1) & Establish 10-Day Countdown**

- *Description:* Query Korea Post tracking for delivery confirmation; record Day 1.

- *Cross-Reference:* `08_attorney_in_fact_execution_checklist.md` (Section 3.1).

- *Tool:* Korea Post Delivery Confirmation System (`epost.go.kr`).

- *Action:* Mark Day 10 provisional deadline and Day 11 default date on master calendar.

- [ ] **Item 3.2: Contact Claims Adjuster & Preempt Unlicensed Driving Defense**

- *Description:* Deliver preemptive brief citing Supreme Court 98Da48963 En Banc.

- *Cross-Reference:* `01_db_insurance_claim_notice_and_legal_brief.md` File 08 Section 3.2.

- *Target:* Assigned Adjuster at DB Insurance Gangwon Claims Team.

- *Action:* Warn against bad-faith delay; demand written confirmation of provisional payout.

- [ ] **Item 3.3: Pre-Clear Foreign Exchange Remittance Channel with Korean FX Bank**

- *Description:* Submit heirship dossier and bank verification letters to Korean FX Bank.

- *Cross-Reference:* `04_cross_border_heirship_and_legalization_guide.md` (Section 5) Exhibit F-3.

- *Target:* Hana Bank / Shinhan Bank Foreign Exchange Desk.

- *Action:* Confirm outward non-resident insurance remittance clearance under FX Regulations.

- [ ] **Item 3.4: Verify Day 10 Provisional Payout / Record Day 11 Commercial Default**

- *Description:* Verify receipt of KRW 50,000,000; if unpaid on Day 11, commence interest logging.

- *Cross-Reference:* File 08 Section 3.3 & 3.4 (Commercial Default Interest at 6.0% p.a.).

- *Status Check:* If unpaid on Day 11, immediately trigger Phase 4 escalation.

4.4 Phase 4: Regulatory Mediation & Diplomatic Leverage Deployment (FSS & BD Embassy)

- [ ] **Item 4.1: File Financial Dispute Mediation Petition with FSS (Day 15 Trigger)**

- *Description:* File formal petition requesting FSS dispute mediation against DB Insurance.

- *Cross-Reference:* `02_fss_dispute_mediation_petition.md` `07_legal_aid_and_consular_escalation_roster.md`.

- *Target Authority:* Financial Supervisory Service (FSS - 금융감독원 분쟁조정국).

- *Hotline:* FSS Consumer Helpline 1332 Portal: `fss.or.kr`.

- [ ] **Item 4.2: Submit Formal Diplomatic Petition to Embassy of Bangladesh in Seoul**

- *Description:* Deliver Korean/English diplomatic representation letter to Labour & Consular Wing.

- *Cross-Reference:* `07_legal_aid_and_consular_escalation_roster.md` (Section 3).

- *Target Authority:* Embassy of Bangladesh, Seoul (17 Jangmun-ro 6-gil, Yongsan-gu, Seoul 04393).

- *Direct Contacts:* Counsellor (Labour) Tel: 02-796-4056/7 `mission.seoul@mofa.gov.bd`. Mikon Tangchanggya

- [ ] **Item 4.3: Request Embassy Note Verbale (*공한 / 외교구상서*) to MOFA Korea**

- *Description:* Request Bangladesh Embassy issue formal Note Verbale urging fair claim recovery.

- *Cross-Reference:* `07_legal_aid_and_consular_escalation_roster.md` (Section 3.5).

- *Recipients:* Ministry of Foreign Affairs (MOFA Korea) & FSS Insurance Supervisory Bureau.

- *Impact:* Elevates insurer obstinacy into bilateral diplomatic fair-treatment vigilance.

4.5 Phase 5: Judicial Enforcement, Civil Litigation & International Wire Settlement

- [ ] **Item 5.1: Apply for Free Foreigner Legal Aid at KLAC (Day 31+ Trigger)**
  - *Description:* Submit legal aid application under Legal Aid Act Art. 22 for 100% cost-free lawsuit.
  - *Cross-Reference:* `07_legal_aid_and_consular_escalation_roster.md` (Section 2).
  - *Target Branch:* KLAC Seoul Central Branch (서초동 법원단지) or Sokcho Branch.

- *Hotline:* KLAC 132 **Portal: `klac.or.kr`.**

- [ ] **Item 5.2: Activate Seoul Bar Association / Gong-Gam Pro Bono Panel (Secondary Trial Route)**
  - *Description:* Submit case intake to Seoul Bar Foreigner Human Rights Sub-committee & Gong-Gam.
  - *Cross-Reference:* `07_legal_aid_and_consular_escalation_roster.md` (Section 4).

- *Contacts:* Seoul Bar (02-6935-4924) **Gong-Gam Foundation (02-3675-7740).**

  - *Function:* Empanel dedicated tort litigation trial attorney.
- [ ] **Item 5.3: File Civil Complaint at Seoul Central District Court**
  - *Description:* File civil action demanding KRW 100M + 12% p.a. Special Act litigation interest.

- *Cross-Reference:* `01_db_insurance_claim_notice_and_legal_brief.md` **File 08 Section 3.3.**

  - *Venue:* Seoul Central District Court (피고 본점 소재지 관할 법원).
  - *Demands:* Principal + 6% commercial interest to complaint service + 12% litigation interest thereafter.
- [ ] **Item 5.4: Execute Direct Cross-Border SWIFT MT103 Wire Remittances**
  - *Description:* Oversee foreign exchange bank telegraphic transfer to parents' bank accounts.

- *Cross-Reference:* `04_cross_border_heirship_and_legalization_guide.md` (Section 5) **Exhibit F-3.**

  - *Father (Belal Hossain - 66.667%):* Islami Bank Bangladesh PLC (SWIFT: `MTBLBDDH`, Acct `20501230100456789`).
  - *Mother (Monoara Begum - 33.333%):* Sonali Bank PLC (SWIFT: `BSONBDDHXXX`, Acct `20501230100789012`).
- [ ] **Item 5.5: Transmit SWIFT Confirmations to BD Embassy & Complete Case Archival**
  - *Description:* Provide official bank SWIFT MT103 confirmation receipts to Bangladesh Embassy.
  - *Cross-Reference:* `00_master_dossier_index_and_executive_summary.md`.

- *Final Step:* Close case file in Korea Bangladesh Human Rights Committee legal archive.

SECTION 5: EMERGENCY CONTACT DIRECTORY & CROSS-BORDER SETTLEMENT VERIFICATION

기관별 비상 연락망, 전담 창구 총람 및 외환송금 사후 검증 절차

```
================================================================================================================================
                                    INSTITUTIONAL DIRECTORY & EMERGENCY HOTLINES
================================================================================================================================
INSTITUTION NAME                DEPARTMENT / ROLE                PHYSICAL ADDRESS & CONTACT COORDINATES
================================================================================================================================
```

5.1 Institutional Hotlines & Routing Directory

22. **DB Insurance Co., Ltd. (DB 손해보험주식회사)**

- **Headquarters Claims Dept:** DB Financial Center, 432 Teheran-ro, Gangnam-gu, Seoul 06194 (대치동, DB 금융센터)

- Customer Helpline: 1588-0100 (Direct: 1600-0100, Foreigner: 1566-0161)	**Claims Fax: 0505-181-4862 / 02-3011-3339**
- **Claims Email:** claim_auto@idbins.com	claim@idbins.com

- **Policy Channel:** DB Insurance Direct / Customer Claims Center (1588-0100)

- Gangwon Regional Claims Team: Gangwon Center (Wonju/Gangneung), Tel: 033-749-9000 / 1588-0100	**Fax: 0505-181-4862**

23. **Seojeong University (학교법인 서정학원 서정대학교)**

- **Office of International Affairs (국제교류처):** 27 Seojeong-ro, Eunhyeon-myeon, Yangju-si, Gyeonggi-do 11429

- Main Phone: 031-860-5000	**OIA Direct: 031-860-5292 / 031-860-5293**	**Fax: 031-859-6180**
- **OIA Email:** global@seojeong.ac.kr	inter@seojeong.ac.kr	
- **President:** Yang Young-hee (양영희 총장)	Dean of International Affairs: 전담 처장	

24. **Financial Supervisory Service (금융감독원 - FSS)**

- **Dispute Mediation Bureau (금융분쟁조정국 보험분쟁조정팀):** 38 Yeoui-daero, Yeongdeungpo-gu, Seoul 07321

- Financial Consumer Helpline: 1332 (국번없이 1332)	**Direct: 02-3145-5114**

- **Online Dispute Filing:** www.fss.or.kr (민원·국민참여 -> 금융분쟁조정)

25. **Embassy of the People's Republic of Bangladesh in Seoul (주한 방글라데시 대사관)**

- **Chancery & Consular Wing:** 17 Jangmun-ro 6-gil, Yongsan-gu, Seoul 04393 (동빙고동)

- Chancery Phone: 02-796-4056 / 02-796-4057	**Consular Direct: 02-796-4059**	**Fax: 02-796-4060**

- **Labour & Consular Head:** Mikon Tangchanggya, Counsellor (Labour)

- Diplomatic Email: mission.seoul@mofa.gov.bd	**bdembassyseoul@gmail.com**

26. **Korea Legal Aid Corporation (대한법률구조공단 - KLAC)**

- National Legal Aid Hotline: 132 (국번없이 132, 유선/무선)	**Portal: www.klac.or.kr**
- **Seoul Central Branch:** 12 Teheran-ro 4-gil, Gangnam-gu, Seoul (Near Seoul Central Court / Seocho)	Tel: 02-532-0132
- **Sokcho Branch (Local Jurisdiction):** 16 Beonyeong-ro, Sokcho-si, Gangwon State (Near Sokcho Court)	Tel: 033-636-2311

27. **Bar Associations & Public Interest Human Rights Organizations**

- Seoul Bar Association Foreigner Human Rights Sub-committee: 124 Seochojungang-ro, Seocho-gu, Seoul	**Tel: 02-6935-4924**
- **Public Interest Human Rights Law Foundation Gong-Gam:** #301, 22 Changgyeonggung-ro 16-gil, Jongno-gu, Seoul	Tel: 02-3675-7740

- **National Human Rights Commission of Korea (NHRCK):** 1331 (인권상담센터)

28. **Investigating Police & Forensic Authorities**

- Gangwon Sokcho Police Station Traffic Unit: 101 Donghaeh-daero, Sokcho-si, Gangwon State	**Tel: 033-630-0352 (Case: 2026-00020)**	
- **GangNeung Asan Hospital Mortuary / Records:** 38 Bangdong-gil, Sacheon-myeon, Gangneung-si	Tel: 033-610-3114	
- **Embalmingkorea Inc. (국제사체송환):** #605, 138-1 Jongno 3-ga, Jongno-gu, Seoul	Tel: 02-2263-5559	Mobile: 010-2317-5063

5.2 Foreign Exchange Bank Designation & Non-Taxation Clearance

29. **Foreign Exchange Bank Designation Protocol (외국환은행 지정 절차):**

- Under Korean Foreign Exchange Transactions Regulations Chapter 4, the Attorney-in-Fact or Insurer registers the designated transaction at a major foreign exchange bank (e.g., Hana Bank World Center Branch or Shinhan Bank Global Desk).

- **Designation Code:** Non-Resident Insurance Claim Outward Remittance (*비거주자 보험금 대외지급*).

30. **Inheritance & Gift Tax Exemption Confirmation (*상속세 및 증여세법 검토*):**

- Under Korean Supreme Court precedent (2003Da29463), first-party accidental death benefits are the **inherent property of the heirs (상속인의 고유재산)**.

- Statutory Basic Exemption: Under the Inheritance and Gift Tax Act, basic deductions of KRW 200,000,000 apply. Because total recovery proceeds (KRW 110,000,000 ~ 150,000,000) are below the KRW 200M deduction, zero Korean inheritance tax liability arises.

- The Foreign Exchange Bank issues the **Non-Taxable Outward Remittance Verification Certificate (비과세 대외송금 확인서)**.

5.3 SWIFT MT103 Remittance Confirmation & Diplomatic Case Archival

```
================================================================================================
                        SWIFT MT103 WIRE REMITTANCE EXECUTION DATA
================================================================================================
[DESIGNATED AUTHORIZED RECIPIENT ACCOUNT (SPECIAL MANDATE CLAUSE 6)]
  Beneficiary Full Legal Name: HASIBUL MUNIM (선임대리인 겸 수임인)
  National ID Card Number:     6003330534
  Bangladeshi Passport Number: B00936349
  Beneficiary Address:         129, Kalabagan, Green Land Mirpur Road, Dhaka - 1205, Bangladesh
  Bank Name:                   Mutual Trust Bank PLC (MTB)
  Branch Name:                 Dhanmondi Branch (Green Taj Center, House# 81, Road# 8/A, Dhanmondi, Dhaka)
  Account Number:              1311004072276 (MTB Regular Savings Account / Operative)
  Customer ID Number:          100749591
  SWIFT Code / BIC:            MTBLBDDH
  Routing Code / MICR Transit: 145261188
  Remittance Currency & Sum:   KRW 100,000,000 + Repatriation + Interest (or USD Equivalent at TT Selling Rate)
  Fiduciary Mandate:           Disbursed to Father Belal Hossain (2/3) and Mother Monoara Begum (1/3)
================================================================================================
```

Final Archival Protocol:

31. Obtain authenticated bank **SWIFT MT103 Customer Transfer Confirmation Receipts** displaying UETR (Unique End-to-End Transaction Reference) codes.
32. Deliver duplicate SWIFT receipts to the Labour & Consular Wing of the Embassy of Bangladesh in Seoul.
33. Transmit confirmation receipts to the surviving parents in Cumilla, Bangladesh, alongside certified Bengali explanations.
34. Archive entire 9-file master dossier in the permanent records of the Korea Bangladesh Human Rights Committee.

SECTION 6: FORMAL ATTESTATION & COMPLIANCE SIGN-OFF

선임 대리인 법률 준수 확약 및 최종 서명

```
================================================================================================
                                FORMAL COMPLIANCE ATTESTATION
================================================================================================
I, Md Monirul Islam, Chairman of the Korea Bangladesh Human Rights Committee, as the designated
Attorney-in-Fact for BELAL HOSSAIN (Father) and MONOARA BEGUM (Mother)—the sole legal heirs of the
late MAHADI MONOAR HOSSAIN—hereby formally attest that:

1. Every administrative, postal, regulatory, and judicial action delineated in this Execution
   Checklist complies strictly with the Korean Commercial Code, Civil Act, Civil Procedure Act,
   Private International Law Act, and Supreme Court En Banc precedent 98Da48963;
2. All insurance recoveries obtained from DB Insurance Co., Ltd. and Seojeong
   University shall be remitted directly and without unauthorized deduction to the verified
   Bangladeshi bank accounts of the surviving parents in accordance with their statutory shares;
3. In the event of insurer delay or bad-faith exemption defenses, the contingency escalation
   triggers (FSS Dispute Mediation, Bangladesh Embassy Note Verbale, and KLAC Free Legal Aid
   Civil Litigation) will be deployed without delay.
================================================================================================
```

Date of Attestation: August 30, 2026

Designated Attorney-in-Fact (수임인 겸 대리인):

Md Monirul Islam

Chairman, Korea Bangladesh Human Rights Committee (주한 방글라데시 인권위원회 위원장)

Appointed Legal Representative under Consular-Legalized Special Power of Attorney

(Signature & Official Seal Affixed)

End of Document `08_attorney_in_fact_execution_checklist.md`